TERMS & CONDITIONS

North Crescent Facility Solutions Inc

These Terms & Conditions (“Terms”) apply to all services provided by North Crescent Facility Solutions Inc (“Service Provider”).

By accepting a quote, booking a service, or signing a Service Agreement, the Client agrees to these Terms.

1. DEFINITIONS

For the purposes of these Terms & Conditions:

“Client” means the individual, company, property owner, tenant, authorized representative, or other legal entity that requests, purchases, or receives Services from North Crescent Facility Solutions Inc.

“Service Provider” means North Crescent Facility Solutions Inc.

“Services” means the cleaning, junk removal, snow removal, ice treatment, and other facility support services offered by the Service Provider, as applicable to the approved Scope of Work and the Agreement.

“Scope of Work” means the specific services, tasks, service areas, service frequency, applicable service plan, exclusions, and other requirements expressly described in the approved quotation, proposal, or service agreement.

“Agreement” means the applicable approved quotation, proposal, or service agreement, together with these Terms & Conditions and any written amendments or additional terms expressly accepted by both parties. If a specific provision in an approved proposal or service agreement conflicts with these Terms & Conditions, the specific provision shall prevail only to the extent of that conflict.

“Site” means the property, premises, driveway, parking area, walkway, entrance, steps, or other location identified in the approved Scope of Work where the Services are to be performed.

“Additional Services” means any service, task, treatment, service area, or work requested by the Client that is outside the approved Scope of Work or is not included in the selected service plan. Additional Services require the Service Provider’s approval and may be subject to additional charges.

“Hazardous Conditions” means any condition that may pose a risk to health, safety, equipment, or property, including but not limited to biohazards, sharp objects, structural hazards, unstable surfaces, unsafe access, hidden obstacles, and other conditions that may prevent or interfere with the safe performance of the Services.

“Seasonal Snow Removal Services” means the snow removal and related winter access services expressly included in the approved proposal or service agreement, subject to the selected service plan, designated service areas, applicable exclusions, weather conditions, and these Terms & Conditions.

“Ice Treatment” means the application of salt or other approved de-icing materials only where expressly included in the selected service plan or separately authorized in writing by the Client and accepted by the Service Provider.

“Seasonal Service Period” means the start date and end date stated in the approved proposal or service agreement for the provision of seasonal services. The Service Provider’s obligations are limited to the Services and service period expressly agreed upon by the parties.

2. SCOPE OF SERVICES

The Service Provider agrees to perform only those services expressly outlined in the approved Scope of Work.

The Scope of Work strictly defines the services to be delivered, including the type of service, areas to be serviced, service frequency, applicable service plan, and any specific requirements agreed upon.

For cleaning, junk removal, and other facility support services, the Service Provider's obligations are limited to the tasks, areas, and requirements expressly included in the approved Scope of Work.

For Seasonal Snow Removal Services and Ice Treatment, the Service Provider's obligations are limited to the services, designated areas, applicable service plan, service period, and treatments expressly included in the approved proposal or service agreement. Snow removal and ice treatment are separate activities unless expressly combined in the selected service plan or approved Scope of Work.

Snow removal and ice treatment services are performed subject to actual weather conditions, site conditions, and safe operating conditions. The Service Provider does not guarantee that driveways, parking areas, walkways, entrances, steps, or other treated surfaces will remain completely free of snow or ice at all times, including during ongoing snowfall, freezing rain, refreezing, or changing weather conditions.

Seasonal Snow Removal Services

Snowfall Threshold and Regular Service

Regular seasonal snow removal service is triggered when snowfall accumulation reaches **5 cm or more** within the designated service area, subject to the applicable service plan and approved Scope of Work.

Regular service is generally performed after the qualifying snowfall event has ended and, where reasonably practicable, after the relevant municipal snowplow has completed its pass on the street serving the Client's property.

A temporary pause or brief reduction in snowfall does not automatically constitute the end of a snowfall event or trigger a separate regular service visit. Service timing will be determined according to the overall weather event, accumulated snowfall, municipal snow-clearing activity, site conditions, and safe operating conditions.

Regular post-storm visits are included throughout the contracted seasonal service period in accordance with the selected service plan. **The Client is not required to contact the Service Provider to activate a regular visit after a qualifying snowfall event.**

Coordination with Municipal Snow-Clearing Operations

Where reasonably practicable, the Service Provider will coordinate regular snow removal service with municipal snow-clearing operations to help reduce the likelihood of snowplows depositing additional snow at the property's driveway entrance after the Service Provider has completed the visit.

Municipal snowplow routes, schedules, and completion times are outside the Service Provider's control. Therefore, the Service Provider does not guarantee that municipal snow-clearing operations will be completed before its arrival or that no additional snow will be deposited at the property's entrance after service has been performed.

If municipal operations, weather conditions, or other circumstances beyond the Service Provider's reasonable control affect service timing, the Service Provider may adjust the service sequence or timing as reasonably necessary.

Included Extraordinary Service Visits

In addition to regular seasonal post-storm visits, each Client is entitled to a maximum of **five (5) Extraordinary Service Visits per seasonal service period**, at no additional service charge.

Extraordinary Service Visits are intended for additional snow removal requested by the Client outside the regular service sequence, including requests for an earlier visit while snowfall is ongoing or before the relevant municipal snowplow has completed its pass.

These five (5) visits are an additional seasonal benefit. **They do not replace, reduce, or count toward the regular post-storm visits included in the selected service plan.**

The Client must request an Extraordinary Service Visit through the communication channels designated by the Service Provider. All requests are subject to service availability, weather conditions, site accessibility, and safe operating conditions.

The Service Provider does not guarantee immediate attendance or a specific arrival time for an Extraordinary Service Visit.

Additional Extraordinary Service Visits

Once the five (5) included Extraordinary Service Visits have been used, each subsequent Extraordinary Service Visit requested by the Client will be charged at **CAD $40.00 per visit, plus applicable HST**.

The Service Provider will disclose the applicable charge and obtain the Client's approval before performing any chargeable Extraordinary Service Visit. No additional charge will be applied for such a visit without the Client's approval.

These additional charges apply only to Extraordinary Service Visits requested by the Client and do not replace or reduce the regular seasonal visits included in the approved service plan.

Weather, Site Conditions, and Access Limitations

Snow removal and ice treatment services may be delayed, postponed, suspended, or declined when severe weather, poor visibility, unsafe surfaces, blocked access, equipment limitations, or other site conditions create an unreasonable safety risk or make the work unsafe to perform.

Where reasonably practicable, the Service Provider will communicate the issue to the Client and discuss an appropriate alternative or revised service time.

The Service Provider is not responsible for delays caused by circumstances beyond its reasonable control, including municipal snow-clearing schedules, continued or renewed snowfall, freezing rain, refreezing, extreme weather, or inaccessible service areas, subject to the Agreement and applicable law.

Snow removal and ice treatment reduce snow and ice accumulation but cannot eliminate all slipping hazards or guarantee continuously clear or ice-free surfaces. The Client acknowledges that weather and surface conditions may change after a service visit has been completed.

Salt Application and Post-Visit Ice Maintenance

Salt Application During Each Applicable Service Visit

Salt or other approved de-icing materials will be applied during a Snow Removal service visit only when Ice Treatment is included in the Client's selected service plan or has been separately authorized in writing by the Client and accepted by the Service Provider.

The application will be limited to the designated areas expressly included in the approved Scope of Work. The type and amount of de-icing material applied will depend on the observed conditions, the suitability of the material, and the requirements of the agreed service.

The inclusion, scope, and pricing of Ice Treatment shall remain subject to the approved proposal or service agreement.

Completion of Service and Post-Visit Maintenance

Once the Service Provider has completed the agreed snow removal and, where applicable, salt application tasks for a visit, the service for that visit is considered complete. Completion of an individual visit does not, by itself, terminate the seasonal service agreement or affect any remaining obligations under that agreement.

The Service Provider does not provide continuous salt application or ongoing ice maintenance between completed service visits. The Client is responsible for monitoring changing conditions on the property and arranging any additional salt application or ice maintenance required after the visit, except for any further services expressly included in the approved agreement.

The application of salt during a service visit does not guarantee that treated surfaces will remain ice-free or slip-resistant after the Service Provider has left the property.

Snowfall, freezing rain, melting and refreezing, temperature changes, runoff, and other environmental conditions may cause new or recurring ice to form after treatment.

No automatic return visit or additional salt application is included solely because ice forms again after a completed visit, unless such service is expressly included in the approved agreement or separately authorized.

Any additional service outside the agreed Scope of Work will be subject to availability, the applicable agreement, and the Client's approval of any additional charges where required.

Nothing in this subsection excludes or limits any duty or liability that cannot lawfully be excluded or limited under applicable law.

3. SITE CONDITIONS

The Client is responsible for providing accurate information regarding the Site and for ensuring that the Site is reasonably safe, accessible, and suitable for the performance of the Services, subject to the Service Provider's responsibility to assess and manage risks within its control.

The Client must disclose all relevant information regarding site conditions prior to the commencement of services, including but not limited to:

- Hazardous materials
- Biohazards or contaminated environments
- Structural risks or unsafe conditions
- Infestations or unsanitary conditions
- Restricted or limited access areas
- For Seasonal Snow Removal Services, known obstructions, hidden hazards, drainage issues, uneven surfaces, damaged pavement, unmarked curbs, or other conditions that may affect safe snow removal or ice treatment.

The Service Provider reserves the right to refuse, suspend, or terminate services if, acting reasonably and in accordance with applicable law, the Site presents Hazardous Conditions or risks to personnel, property, or equipment that cannot be safely managed.

If undisclosed or unforeseen conditions are identified, the Service Provider may:

- Stop work immediately where reasonably necessary for safety;
- Reassess the Scope of Work;
- Propose additional charges for work outside the approved Scope of Work, subject to the Client's approval where required; and
- Require specialized services or equipment before proceeding.

For Seasonal Snow Removal Services, the Client is responsible for identifying, where reasonably possible, the location of known underground or concealed hazards, including irrigation systems, cables, drainage covers, and other obstructions that may not be visible beneath snow. The Client must also disclose known surface damage and areas that require special care.

The Service Provider will exercise reasonable care when performing the Services and will not knowingly proceed with work that presents an unreasonable safety risk. The Service Provider shall not be held responsible, to the extent permitted by applicable law, for delays or incomplete services directly resulting from unsafe or undisclosed site conditions that are outside the Service Provider's reasonable control. Nothing in this provision excludes liability that cannot lawfully be excluded.

All time lost due to Site inaccessibility, unsafe conditions, or delays caused by the Client may be subject to additional charges where applicable and, where required, communicated to and approved by the Client.

4. ACCESS & DELAYS

The Client is responsible for ensuring that the Service Provider has full, safe, and timely access to the Site at the scheduled service time, including any necessary access instructions, permissions, and arrangements.

If the Service Provider is unable to access the Site due to circumstances within the Client's control, including but not limited to:

- Locked premises;
- Incorrect or incomplete access information;
- Delays caused by the Client or third parties under the Client's control;
- Site not ready for service; or
- For Seasonal Snow Removal Services, vehicles, equipment, personal property, or other obstructions preventing access to the designated service areas;

the Service Provider reserves the right, as applicable and subject to the Agreement and applicable law, to:

- Charge a reasonable service call fee where permitted;
- Charge for services performed, time reasonably spent waiting, or other applicable fees disclosed in the Agreement; and
- Reschedule the service, with any applicable additional charges communicated to the Client in advance where reasonably practicable.

The Service Provider shall not be held responsible, to the extent permitted by applicable law, for delays, interruptions, or additional costs directly resulting from lack of access or site readiness caused by the Client or circumstances within the Client's reasonable control.

For cleaning, junk removal, and other facility support services, the Client must ensure that the areas included in the approved Scope of Work are reasonably accessible and ready for service at the scheduled time. The Client must provide any necessary access instructions, permissions, keys, entry codes, or other arrangements agreed upon before the scheduled visit.

If access to all or part of the Site is restricted, or if the Site is not reasonably ready for the agreed Services, the Service Provider may proceed with the accessible and suitable areas where reasonably practicable, reschedule the affected work, or propose adjustments to the Scope of Work. Any additional charges must be disclosed and approved where required by the Agreement and applicable law.

For Seasonal Snow Removal Services, the Client must ensure that designated driveways, parking areas, walkways, entrances, and other agreed service areas are reasonably accessible and, where applicable, that vehicles and movable obstructions are removed before the scheduled service. The Client must also communicate any access restrictions or special instructions that may affect the safe performance of the Services.

The Service Provider is not responsible for moving the Client's vehicles, personal property, equipment, or other obstructions unless such work has been expressly included in the approved Scope of Work or separately agreed upon in writing.

Where an obstruction prevents safe access to all or part of a designated snow removal area, the Service Provider may service the accessible areas where reasonably practicable and safe. The Service Provider may defer or omit the obstructed area until access is restored, subject to the approved Scope of Work and applicable law. Any additional visit or work requested as a result of the obstruction may be subject to additional charges, provided the applicable charges are disclosed and approved where required.

Snowfall, freezing rain, extreme temperatures, unsafe conditions, road closures, equipment failures, or other circumstances beyond the Service Provider's reasonable control may affect access, scheduling, or the timing of the Services. In such circumstances, the Service Provider will make reasonable efforts to communicate material delays to the

Client and arrange service when conditions reasonably permit. Any applicable rescheduling or service adjustments will be handled in accordance with the Agreement and applicable law.

If access delays caused by the Client result in extended waiting time or additional time on-site, reasonable waiting-time or additional-service charges may apply where permitted by the Agreement and applicable law. Any applicable rates or fees must be disclosed to the Client before they are charged.

Repeated access issues may result in service suspension or termination in accordance with the Agreement and applicable law. Where reasonably practicable, the Service Provider will notify the Client of recurring access problems and provide an opportunity to resolve them before termination.

5. PRICING & ADDITIONAL CHARGES

All pricing is based on the Scope of Work as defined in the approved quotation, proposal, or service agreement.

Pricing is calculated based on the information provided by the Client at the time of quoting, including but not limited to property condition, volume of materials, accessibility, and scope complexity.

The Service Provider reserves the right to propose a pricing adjustment if actual site conditions differ materially from those originally disclosed or reasonably anticipated. Any adjustment must be communicated to the Client and accepted before the additional work is performed, except where immediate action is reasonably necessary to address an urgent safety risk, subject to applicable law.

Additional charges may apply, including but not limited to:

- Additional labor or time required;
- Increased volume of materials or debris;
- Hazardous or unsafe conditions;
- Restricted or difficult access;
- Delays caused by the Client or third parties;
- Specialized equipment or disposal requirements; and
- For Seasonal Snow Removal Services, additional snow removal, ice treatment, or service areas not included in the selected plan or approved Scope of Work.

For Seasonal Snow Removal Services and Ice Treatment, the applicable price, service areas, service frequency or triggering conditions, seasonal service period, and included treatments will be determined by the approved proposal or service agreement. Ice treatment materials, including salt or other de-icing products, are included only where expressly stated in the selected plan or separately approved by the Client.

For Seasonal Snow Removal Services, the Client is entitled to five (5) included Extraordinary Service Visits per Seasonal Service Period, in addition to regular post-storm visits, as described in the approved proposal or service agreement. These included visits do not replace or reduce the regular visits included in the selected service plan.

Once the five (5) included Extraordinary Service Visits have been used, each additional Extraordinary Service Visit requested by the Client will be charged at CAD $40.00 per visit, plus applicable HST. The Service Provider must communicate the applicable charge and obtain the Client's approval before performing the additional visit.

All Additional Services or charges must be approved by the Client before the additional work proceeds, unless immediate action is reasonably necessary to address an urgent safety risk and the action is permitted by applicable law. Any such

action must be limited to what is reasonably necessary, and the Service Provider will communicate the circumstances and any applicable charges to the Client as soon as reasonably practicable.

If the Client refuses to approve necessary additional charges, the Service Provider reserves the right to decline the additional work or suspend or terminate the affected service in accordance with the Agreement and applicable law. The Client remains responsible for charges properly due for services already performed and any other fees validly agreed upon.

All pricing is exclusive of applicable taxes unless otherwise stated.

6. PAYMENT TERMS

All invoices are due within fifteen (15) days from the invoice date unless otherwise agreed in writing in the applicable quotation, proposal, or Service Agreement.

For Seasonal Snow Removal Services or other services covered by an approved seasonal or recurring Service Agreement, the Client must follow the payment schedule expressly stated in the approved proposal or Service Agreement. Where the approved Agreement specifies instalment dates or advance payments, those terms will apply, subject to applicable law and any contractual rights to refunds, credits, or adjustments.

Overdue amounts may accrue interest at the rate expressly agreed upon by the parties in the applicable Agreement, provided that the rate and method of calculation comply with applicable law. Any interest charged shall not exceed the maximum rate legally recoverable and shall be calculated in accordance with applicable law.

Subject to the Agreement and applicable law, the Service Provider reserves the right to:

- Suspend or discontinue affected Services for overdue accounts, following any notice or other requirements imposed by applicable law;
- Require full or partial payment in advance for future Services where agreed with the Client; and
- Refuse to schedule or perform additional Services while outstanding balances remain unpaid, where permitted by the Agreement and applicable law.

The Client may be responsible for reasonable and legally recoverable costs associated with the collection of overdue amounts, including applicable court costs, legal fees, and third-party collection agency fees, to the extent recoverable under applicable law.

The Service Provider may require a deposit before commencing Services, particularly for large projects, recurring Services, seasonal contracts, or high-risk jobs. Any deposit amount, payment deadline, and applicable refund or cancellation conditions must be disclosed in the approved quotation, proposal, or Service Agreement and will be subject to applicable law.

For seasonal contracts with an agreed instalment schedule, the Client remains responsible for making payments according to the approved schedule, subject to the terms of the Agreement and any refund, credit, or adjustment required by the Agreement or applicable law. Variations in individual service visits due to weather conditions or operational scheduling do not automatically change the agreed payment schedule.

For Seasonal Snow Removal Services, payment obligations are based on the seasonal pricing and payment schedule expressly stated in the approved proposal or Service Agreement. The inclusion of regular post-storm visits and the five (5) included Extraordinary Service Visits does not, by itself, alter the agreed payment schedule.

Any additional Extraordinary Service Visits charged at CAD $40.00 per visit, plus applicable HST, must be approved by the Client before the additional visit is performed. Approved additional visits will be invoiced in accordance with the applicable payment terms.

Failure to make payment in accordance with these Terms & Conditions or the applicable Agreement may constitute a material breach of the Agreement and may result in suspension or termination of the affected Services, subject to applicable contractual obligations, notice requirements, and legal restrictions.

7. CANCELLATION POLICY

The Client must provide a minimum of twenty-four (24) hours' notice for any cancellation or rescheduling of individually scheduled Services, unless otherwise agreed in writing or required by applicable law.

Cancellations made with less than twenty-four (24) hours' notice may be subject to a reasonable cancellation fee, provided that the applicable fee has been disclosed to the Client before the booking is confirmed, is permitted by applicable law, and is reasonably proportionate to the circumstances of the cancellation and the costs or losses reasonably incurred by the Service Provider.

Same-day cancellations, failure to provide access, or refusal of Services upon arrival may result in a reasonable cancellation or service call fee, provided that the applicable fee has been disclosed to the Client before the booking is confirmed and is permitted by the Agreement and applicable law. Any fee charged must be reasonably justified by the circumstances, including any work already performed, travel undertaken, resources committed, and costs or losses reasonably incurred by the Service Provider.

The Service Provider may charge a reasonable service call fee where a scheduled visit cannot be completed because of circumstances within the Client's control, provided that the applicable fee has been disclosed in advance and is permitted by the Agreement and applicable law.

For recurring Services, repeated cancellations or rescheduling may result in:

- A proposed adjustment to service pricing, subject to the Client's agreement where required;
- A requirement for advance payment, where agreed with the Client; or
- Suspension or termination of the affected Services in accordance with the Agreement and applicable law.

Seasonal Snow Removal Services

For Seasonal Snow Removal Services, cancellation of an individual service visit, a request to change or defer a visit, and cancellation of the seasonal service agreement are separate matters. The applicable notice requirements, payment obligations, and any cancellation charges will be determined by the approved proposal or service agreement and applicable law.

Regular post-storm visits are performed according to the applicable service conditions and operational schedule. A Client's request to cancel or defer an individual visit does not automatically cancel the seasonal service agreement or release the Client from payment obligations established in the approved proposal or service agreement, subject to any applicable contractual rights and mandatory legal protections.

Where a Client requests the cancellation or deferral of an individual Snow Removal visit, the Service Provider will assess the request in accordance with the approved service agreement, operational conditions, and applicable law. Acceptance of a request to cancel or defer a visit does not automatically entitle the Client to a refund, credit, replacement visit, or adjustment to the seasonal contract price unless provided for in the approved agreement or required by applicable law.

Weather-related delays, unsafe operating conditions, or circumstances beyond the Service Provider's reasonable control will be addressed in accordance with the Agreement's provisions concerning service scheduling, site conditions, and force majeure. Such circumstances will not automatically be treated as a Client cancellation.

Fees and Waivers

Any cancellation or service call fees must be disclosed in advance, applied in accordance with the Agreement and applicable law, and reasonably justified where required. Validly payable fees are due in accordance with the applicable invoice and payment terms.

The Service Provider may waive a cancellation or service call fee at its discretion. Any such waiver for a particular instance does not automatically waive the fee for a subsequent cancellation or service call.

Nothing in this section limits any cancellation right, refund entitlement, or other protection that cannot lawfully be excluded or restricted under applicable law.

8. LIMITATION OF LIABILITY

To the fullest extent permitted by applicable law, the total liability of the Service Provider for claims, losses, damages, or expenses arising out of or relating to the Services or these Terms & Conditions shall be limited to a reasonable amount determined by reference to the fees paid or payable for the specific Services giving rise to the claim, subject to the nature of the claim, the applicable Agreement, and any liability that cannot lawfully be limited or excluded.

This limitation shall apply only to the extent permitted by applicable law and shall not exclude or restrict any liability, right, or remedy that cannot legally be excluded or restricted.

To the fullest extent permitted by applicable law, the Service Provider shall not be liable for:

- Indirect, incidental, special, or consequential damages, except to the extent such damages arise from liability that cannot lawfully be excluded or restricted;
- Loss of profits, revenue, business opportunities, or use, subject to the same limitation;
- Loss or damage resulting from business interruption, subject to the same limitation;
- Pre-existing damage, hidden defects, or structural issues, except to the extent the loss or damage results from the Service Provider's negligence, breach of the Agreement, or other conduct for which liability cannot lawfully be excluded; or
- Damage to items that were not disclosed, were improperly secured, or were inherently fragile, except to the extent the damage results from the Service Provider's negligence, breach of the Agreement, or other conduct for which liability cannot lawfully be excluded.

For cleaning, junk removal, and other facility support services, the Client acknowledges that pre-existing damage, hidden defects, structural issues, and conditions not reasonably apparent before or during the Services may affect the performance or outcome of the work. The Service Provider will exercise reasonable care while performing the Services, subject to the agreed Scope of Work and applicable law.

Seasonal Snow Removal Services and Ice Treatment

For Seasonal Snow Removal Services and Ice Treatment, the Client acknowledges that weather conditions, freezing rain, refreezing, changing temperatures, additional snowfall, melting snow, runoff, and other environmental conditions may affect surface conditions before, during, and after service.

The Service Provider does not guarantee that driveways, parking areas, walkways, entrances, steps, or other serviced surfaces will remain completely free of snow or ice at all times. Snow removal and ice treatment are intended to reduce snow or ice accumulation to the extent reasonably achievable under the agreed Scope of Work, the selected service plan, and the prevailing conditions.

Salt Application and Post-Visit Conditions

Salt or other approved de-icing materials will be applied during a Snow Removal service visit only when Ice Treatment is included in the Client's selected service plan or has been separately authorized in writing by the Client and accepted by the Service Provider. Application will be limited to the designated areas expressly included in the approved Scope of Work. The type and amount of material applied will depend on the observed conditions, the suitability of the material, and the requirements of the agreed service.

The application of salt is intended to help manage ice-related conditions but does not guarantee that treated surfaces will remain ice-free or slip-resistant after the Service Provider has completed the visit.

The Service Provider does not provide continuous ice monitoring, ongoing salt application, or automatic repeat treatments between completed service visits unless such services are expressly included in the approved Agreement.

Following completion of a visit, new or recurring ice may develop as a result of freezing rain, melting and refreezing, temperature changes, runoff, additional precipitation, or other environmental conditions. The Client acknowledges that monitoring changing conditions and arranging additional ice maintenance outside the agreed Scope of Work are the Client's responsibility, except where further services are expressly included in the approved Agreement.

No automatic return visit or additional salt application is included solely because ice forms again after a completed visit, unless such service is expressly included in the approved Agreement or separately authorized by the Client.

The Service Provider shall not be responsible for conditions arising after completion of a service visit solely because of subsequent snowfall, freezing rain, refreezing, or other environmental conditions beyond its reasonable control, except to the extent that the loss or damage results from the Service Provider's negligence, breach of the Agreement, or other conduct for which liability cannot lawfully be excluded or restricted.

Any additional service outside the agreed Scope of Work shall be subject to availability, the applicable Agreement, and the Client's approval of any additional charges where required.

General Application of Liability Limitations

Any limitation or exclusion of liability under this section applies only to the extent permitted by applicable law, regardless of whether a claim arises in contract, tort (including negligence), or otherwise. Nothing in this section excludes or restricts liability that cannot lawfully be excluded or restricted.

The Client acknowledges that the pricing of Services reflects the agreed Scope of Work and the allocation of risk contemplated by these Terms & Conditions. Any separately agreed liability coverage or different allocation of risk must be documented in a written agreement accepted by both parties and remains subject to applicable law.

9. DAMAGE CLAIMS

The Client must notify the Service Provider in writing of any alleged damage arising from the Services as soon as reasonably practicable after discovering the damage. The notification should include a description of the alleged damage, the date it was discovered, the affected area or item, and any available supporting photographs or documentation.

The Service Provider may request reasonable additional information or access to the affected area or item to investigate and assess the claim. The Client agrees to cooperate reasonably with the investigation and to preserve any relevant evidence where practicable.

The Service Provider may review available service records, photographs, videos, site conditions, the agreed Scope of Work, and other relevant information when assessing a damage claim. Such documentation may include records taken before, during, or after the Services, where available.

For cleaning, junk removal, and other facility support services, the Client should identify any pre-existing damage, fragile items, special handling requirements, or other relevant conditions before the Services begin. The Service Provider will exercise reasonable care when performing the agreed Services, subject to the Scope of Work and applicable law.

Seasonal Snow Removal Services and Ice Treatment

For Seasonal Snow Removal Services and Ice Treatment, the Client acknowledges that snow and ice may conceal pre-existing damage, uneven surfaces, curbs, landscaping features, drainage covers, and other obstacles. The Client should report known hazards or existing damage before service where reasonably practicable.

The Client is encouraged to document existing damage and identify known obstacles or vulnerable surfaces before the winter service period begins, where reasonably practicable. The absence of such documentation does not, by itself, establish or eliminate either party's responsibility for alleged damage.

The Service Provider will assess claims involving alleged damage associated with snow removal equipment, salt, or other de-icing materials based on the available evidence, the agreed Scope of Work, the site conditions, and the circumstances of the incident.

Where relevant, the assessment may consider the condition of the affected surface before the service, the location of the alleged damage, the equipment or materials used, the available service records, and other reasonably available evidence. Neither the presence of pre-existing damage nor the occurrence of damage during the winter season automatically determines responsibility.

Investigation and Determination of Responsibility

Neither the submission of a damage claim nor the Service Provider's investigation constitutes an admission of liability. Any determination of responsibility will be made in accordance with the Agreement, the available evidence, and applicable law.

The Client and the Service Provider will reasonably cooperate in reviewing the circumstances of a reported incident and exchanging relevant information, subject to applicable law.

Nothing in this section excludes or restricts any liability, right, or remedy that cannot lawfully be excluded or restricted. Any limitation of liability applicable to a damage claim is governed by the Limitation of Liability section of these Terms & Conditions, subject to applicable law.

10. DISPOSAL & ENVIRONMENTAL RESPONSIBILITY

The Service Provider shall handle the removal, transportation, recycling, and disposal of materials in accordance with applicable laws and regulations, including applicable environmental and waste-disposal requirements, and established industry practices.

The Service Provider reserves the right to determine the appropriate method of handling, transporting, recycling, or disposing of materials collected during the provision of Services, subject to applicable law and any specific requirements agreed upon with the Client.

The Client acknowledges and agrees that:

- The Service Provider does not assume ownership of removed materials unless otherwise agreed in writing;
- The Service Provider is not responsible for the retention, storage, or return of removed items unless expressly agreed in writing; and
- Items expressly designated by the Client for removal may be disposed of, recycled, or donated, where appropriate and legally permitted, at the discretion of the Service Provider.

The Client is responsible for identifying and removing any items of value, importance, or sensitivity that are not intended for removal before the commencement of Services. The Client must clearly identify any items that are to be retained and communicate any special handling instructions before the Services begin.

The Service Provider shall not be liable for the loss of items properly included in the materials designated for removal, except to the extent that the loss results from the Service Provider's negligence, breach of the Agreement, or other conduct for which liability cannot lawfully be excluded or restricted.

Hazardous, Restricted, or Regulated Materials

If hazardous, restricted, or regulated materials are identified, the Service Provider reserves the right to:

- Refuse removal or handling of such materials;
- Require specialized handling or third-party services; and
- Propose additional charges for the required services, subject to the Client's approval where required.

The Client shall be responsible for additional costs associated with the proper handling or disposal of such materials where those costs arise from information provided by the Client, the nature of the materials, or other circumstances for which the Client is responsible, subject to applicable law and the approved Agreement.

The Service Provider shall not be required to handle or transport materials beyond the scope of its capabilities, authorizations, or applicable legal requirements. Any alternative arrangements shall be subject to applicable law, availability, and the terms agreed upon with the Client.

Seasonal Snow Removal Services and Ice Treatment

For Seasonal Snow Removal Services and Ice Treatment, the Service Provider shall handle and use salt, de-icing materials, and other service-related materials in accordance with applicable requirements and the approved Scope of Work.

The Client must disclose any known site-specific restrictions or sensitivities relating to drainage, landscaping, surfaces, vegetation, or other property features that may be affected by the agreed services.

The Service Provider will use only the de-icing materials and treatments included in the approved Scope of Work or otherwise authorized by the Client. The Client must communicate any known restrictions concerning the use of such materials before the Services are performed.

The use of salt or other de-icing materials shall remain subject to the selected service plan and the applicable Agreement. The application of such materials does not guarantee that surfaces will remain ice-free or that environmental effects will not occur.

The Client acknowledges that the suitability and effectiveness of de-icing materials may depend on weather conditions, surface types, drainage, temperatures, and other site-specific factors.

The Service Provider shall not be responsible, to the extent permitted by applicable law, for environmental or regulatory issues directly resulting from inaccurate or incomplete information supplied by the Client or from materials designated by the Client for removal. This provision does not exclude or restrict liability arising from the Service Provider's own negligence, breach of the Agreement, or other conduct for which liability cannot lawfully be excluded or restricted.

Nothing in this section excludes or restricts any liability, right, or remedy that cannot lawfully be excluded or restricted under applicable law.

11. FORCE MAJEURE

The Service Provider shall not be liable for any delay, interruption, or failure to perform its obligations to the extent that such delay, interruption, or failure is caused by events beyond its reasonable control and could not reasonably have been prevented or overcome.

Such events may include, but are not limited to:

- Severe weather conditions, including snowstorms, blizzards, freezing rain, extreme temperatures, and other hazardous weather conditions;
- Natural disasters;
- Accidents or equipment failure;
- Labor shortages or workforce unavailability;
- Transportation delays or road closures;
- Government actions, regulations, or restrictions;
- Utility interruptions or site-related issues; and
- Other unforeseen events beyond the Service Provider's reasonable control that materially affect the safe or timely performance of the Services.

In the event of a Force Majeure situation, the Service Provider may, as reasonably necessary and subject to applicable law:

- Reschedule affected Services within a reasonable timeframe, taking into account operational capacity, safety, and prevailing conditions;
- Suspend or delay affected Services without penalty for the period during which performance is prevented or materially affected; and
- Adjust service timelines or operational arrangements as reasonably necessary.

Seasonal Snow Removal Services and Ice Treatment

For Seasonal Snow Removal Services and Ice Treatment, severe weather, ongoing snowfall, freezing rain, unsafe road conditions, restricted access, municipal road-clearing operations, or equipment limitations may affect service scheduling, response times, and the safe performance of the Services.

The Service Provider will make reasonable efforts to perform or resume affected Services when conditions reasonably permit. However, the timing of service may vary depending on weather conditions, road accessibility, operational safety, and other factors beyond the Service Provider's reasonable control.

Where a service visit is delayed or cannot be safely performed because of a Force Majeure event, the Service Provider will address the affected visit in accordance with the approved proposal, the applicable service agreement, and applicable law. A delay or suspension under this section does not automatically constitute a cancellation of the seasonal service agreement.

If a Force Majeure event materially and persistently prevents the performance of the Services, the parties shall address the situation in accordance with the applicable Agreement and applicable law, including any applicable rights or obligations concerning suspension, termination, refunds, credits, or other adjustments.

Liability and Payment Adjustments

The Service Provider shall not be responsible, to the extent permitted by applicable law, for costs, damages, or losses directly resulting from delays or interruptions caused by a Force Majeure event. This provision does not exclude liability for matters that cannot lawfully be excluded or for losses caused by the Service Provider's own negligence or other conduct for which liability cannot lawfully be excluded.

The Client acknowledges that operational schedules may be affected by factors outside the Service Provider's reasonable control and agrees to reasonable adjustments under such circumstances, subject to the Agreement and applicable law.

Nothing in this section automatically cancels the Client's payment obligations or entitles either party to retain payments for Services not provided where a refund, credit, or other adjustment is required by the Agreement or applicable law.

Any adjustment to fees, payments, credits, or refunds resulting from a Force Majeure event shall be determined in accordance with the approved proposal, the applicable service agreement, and applicable law.

Nothing in this section shall be interpreted as automatically waiving the Service Provider's contractual obligations or the Client's rights and remedies where performance remains reasonably possible or where such rights and obligations cannot lawfully be excluded or restricted.

12. NON-SOLICITATION

The Client agrees that, during the term of the Services and for a period of six (6) months following the completion or termination of the Services, the Client shall not, directly or indirectly, for the purpose of bypassing the Service Provider or interfering with its legitimate business relationships, and to the extent permitted by applicable law:

- Solicit, hire, employ, or engage any employee, contractor, or representative of the Service Provider who was materially involved in providing Services to the Client;
- Attempt to induce or encourage any such employee or contractor to leave the Service Provider; or

- Engage any such individual to provide substantially similar services outside the Service Provider's contractual arrangements where doing so would constitute a breach of this provision under applicable law.

This provision does not prohibit general recruitment advertisements, unsolicited applications, or other activities that do not involve targeted solicitation or otherwise breach applicable law.

In the event of an alleged breach of this clause, the Service Provider may seek recovery of reasonable, documented recruitment, replacement, and training costs directly resulting from the breach, to the extent recoverable under applicable law. Any such recovery shall be subject to the establishment of the breach, the causal connection between the breach and the claimed costs, and any applicable legal requirements.

Any agreed fixed fee or other contractual remedy must be expressly documented in writing, reasonably related to the legitimate loss or costs anticipated, and enforceable under applicable law. No fee shall be imposed solely at the Service Provider's discretion without an agreed contractual basis.

This clause is intended to protect the Service Provider's legitimate business interests, including its investment in recruitment, training, and operational stability, while remaining proportionate to those interests and subject to applicable law.

Nothing in this clause is intended to restrict any right or activity that cannot lawfully be restricted under applicable law.

13. SITE DOCUMENTATION

The Service Provider reserves the right to document the Site and services performed through photographs, videos, or other reasonable forms of documentation for operational, quality control, service verification, record-keeping, and dispute resolution purposes.

Such documentation may include the condition of the Site before, during, and after the Services, as reasonably necessary to verify the Scope of Work, document pre-existing conditions, record completed work, or support the handling of service-related concerns.

For cleaning, junk removal, and facility support services, documentation may include relevant areas, surfaces, items, or materials directly related to the Services performed.

For Seasonal Snow Removal Services and Ice Treatment, documentation may include the condition of designated driveways, parking areas, walkways, entrances, steps, and other agreed service areas before or after service, including visible obstructions, pre-existing damage, and relevant site conditions.

The Service Provider will take reasonable steps to avoid unnecessarily capturing identifiable individuals, personal information, or areas unrelated to the Services.

MARKETING AND PROMOTIONAL USE OF PHOTOGRAPHS AND VIDEOS

The Service Provider may use selected photographs and videos of completed Services for legitimate marketing, advertising, promotional, portfolio, website, and social media purposes, provided that such use is responsible, appropriate, and consistent with applicable privacy laws and any required consent.

Before using photographs or videos for public promotional purposes, the Service Provider will take reasonable steps to protect the Client's privacy and prevent the identification of the Client or the specific property.

Such steps may include, where appropriate:

- Removing or obscuring street addresses, house numbers, license plates, access codes, security systems, and other identifying or sensitive information;
- Avoiding the disclosure of the Client's name, contact information, personal belongings, or other details that could reasonably identify the Client;
- Avoiding the publication of identifiable individuals unless the required consent has been obtained;
- Avoiding the disclosure of confidential business information, restricted areas, security arrangements, or operational details; and
- Cropping, editing, blurring, or otherwise modifying photographs and videos when reasonably necessary to protect privacy and confidentiality.

Photographs and videos used for marketing will focus on the Services performed, the quality of the work, the results achieved, and the Service Provider's professional operations.

The Service Provider will not knowingly publish identifiable images of employees, contractors, Clients, visitors, or other individuals for promotional purposes without obtaining any consent required by applicable law. The Service Provider will also respect applicable workplace, contractual, confidentiality, and privacy requirements.

The Client acknowledges that the Service Provider may wish to use suitable photographs and videos of completed Services for the promotional purposes described above. Where consent is required by applicable law or the circumstances, the Service Provider will obtain the necessary consent before using the relevant material for public marketing.

The Service Provider will not knowingly publish a Client's address, access credentials, or other sensitive identifying information in connection with promotional material.

Operational photographs and videos may be retained separately for service verification, quality control, dispute resolution, and legal or contractual purposes, subject to applicable privacy requirements and the Service Provider's Privacy Policy.

The collection, use, storage, disclosure, and retention of photographs, videos, and other documentation will be handled in accordance with applicable privacy laws and the Service Provider's applicable Privacy Policy.

Nothing in this provision authorizes the Service Provider to disclose personal information, confidential information, or images in a manner that violates applicable law or any valid restriction agreed upon with the Client.

The Client acknowledges that reasonable site documentation may be used to record the condition of the Site and the Services performed, subject to the limitations and requirements stated above.

14. GOVERNING LAW

These Terms & Conditions, and any Services provided by North Crescent Facility Solutions Inc. (the "Service Provider"), shall be governed by and interpreted in accordance with the laws of the Province of New Brunswick and the applicable federal laws of Canada.

The parties agree that any disputes, claims, or legal proceedings arising out of or relating to these Terms & Conditions, the Services, or any related agreement shall be brought before the courts of competent jurisdiction in the Province of New Brunswick, subject to applicable law.

The Client and the Service Provider submit to the jurisdiction of the courts of New Brunswick, to the extent permitted by applicable law.

Nothing in this provision shall limit any mandatory rights, remedies, or protections available to the Client under applicable consumer protection legislation or other laws that cannot lawfully be excluded.

The application of other conflict-of-laws rules is excluded to the extent permitted by applicable law.

15. ENTIRE AGREEMENT

These Terms & Conditions, together with the applicable Service Agreement, approved quotation or proposal, and any written addenda or amendments accepted by both parties, constitute the entire agreement between the Client and North Crescent Facility Solutions Inc. (the "Service Provider") concerning the Services.

This Agreement supersedes all prior negotiations, discussions, representations, or agreements, whether written or oral, relating to the subject matter herein, except for any terms or representations that cannot lawfully be excluded or superseded.

The Client acknowledges that the Services to be provided, applicable pricing, service areas, service frequency, selected service plan, seasonal service period, and any agreed exclusions or additional services will be determined by the applicable approved quotation, proposal, or Service Agreement.

The Client acknowledges that they have not relied on statements, promises, or representations not expressly included in these Terms & Conditions or in the applicable approved Service Agreement, quotation, proposal, or written addendum, except where reliance cannot lawfully be excluded.

No amendment, modification, or variation of these Terms & Conditions or the applicable Agreement shall be valid unless documented in writing and accepted by both parties, except where applicable law provides otherwise.

If a specific provision in an approved quotation, proposal, or Service Agreement conflicts with these Terms & Conditions, the documents shall be interpreted together where reasonably possible. If the conflict cannot reasonably be reconciled, the specific provision shall prevail only to the extent of the conflict, subject to applicable law.

16. SEVERABILITY

If any provision of these Terms & Conditions or the applicable Agreement is determined by a court of competent jurisdiction to be invalid, illegal, or unenforceable, that provision shall be severed or limited to the minimum extent necessary, as permitted by applicable law.

The remaining provisions shall continue in full force and effect to the extent that they can operate independently and remain legally enforceable.

Where permitted by applicable law, any invalid or unenforceable provision may be interpreted or limited by a court of competent jurisdiction to the extent necessary to preserve its lawful purpose as closely as reasonably possible, without changing the essential nature of the Agreement or imposing an obligation that the parties did not agree to.

Nothing in this section requires a court to rewrite a provision or prevents the application of any mandatory legal rights or protections.

17. WAIVER

No failure or delay by the Service Provider in exercising any right, power, or remedy under these Terms & Conditions or the applicable Agreement shall operate as a waiver of that right, power, or remedy.

Any waiver of a provision of these Terms & Conditions must be expressly documented in writing by the party granting the waiver and shall apply only to the specific instance identified in that written waiver.

A waiver of any breach or default shall not constitute a waiver of any subsequent or future breach or default, whether of the same or a different provision.

The rights and remedies available to the Service Provider under these Terms & Conditions are cumulative and are not exclusive of any other rights or remedies available under the applicable Agreement or applicable law.

Nothing in this section shall limit any mandatory rights or remedies available to the Client under applicable law.

18. AMENDMENTS

The Service Provider reserves the right to update, modify, or amend these Terms & Conditions from time to time, subject to applicable law and any existing contractual obligations.

Any updated version of these Terms & Conditions shall become effective for new service bookings and agreements upon publication on the Service Provider's website or otherwise being provided to the Client, unless a different effective date is stated.

For ongoing or recurring services, the Service Provider will provide notice of material changes that affect the Client's existing contractual arrangements. Such changes will take effect only in accordance with the applicable Agreement, the Client's express acceptance where required, and applicable law. Continued use of the Services shall not constitute acceptance where express consent is legally required.

Changes to an approved quotation, proposal, or Service Agreement, including changes to pricing, service frequency, the selected service plan, seasonal service period, or the agreed Scope of Work, must be documented and accepted by both parties where required by the Agreement or applicable law.

No modification or amendment proposed by the Client shall be binding on the Service Provider unless expressly accepted in writing by an authorized representative of the Service Provider.

Nothing in this section limits any mandatory rights or protections available to the Client under applicable law.

19. ASSIGNMENT

The Client may not assign, transfer, delegate, or otherwise dispose of any of its rights or obligations under these Terms & Conditions or the applicable Service Agreement without the prior written consent of the Service Provider, except where

otherwise permitted or required by applicable law.

The Service Provider may assign or transfer its rights and obligations under these Terms & Conditions, in whole or in part, in connection with its business operations, restructuring, or growth, subject to applicable law, any contractual restrictions, and any consent or notice requirements that may apply.

The Service Provider may engage qualified employees, contractors, or subcontractors to perform all or part of the Services, including cleaning, junk removal, facility support, Seasonal Snow Removal Services, and Ice Treatment, where appropriate and subject to applicable law.

The use of employees, contractors, or subcontractors does not, by itself, release the Service Provider from its contractual obligations or any liability that cannot lawfully be excluded or transferred.

Any attempted assignment by the Client without the required prior written consent shall have no effect to the extent permitted by applicable law.

These Terms & Conditions shall be binding upon and enure to the benefit of the parties and their respective successors and permitted assigns.

20. ACCEPTANCE

By accepting a quotation or proposal, signing a Service Agreement, providing written or electronic confirmation, or otherwise accepting the Services in a manner recognized by applicable law, the Client acknowledges that these Terms & Conditions have been made available to them and agrees to be bound by them, subject to applicable law.

Acceptance may be evidenced by a signed agreement, electronic signature, written or electronic confirmation, approval of a quotation or proposal, or other conduct that legally establishes the Client's acceptance of the applicable contractual terms.

These Terms & Conditions are intended to form part of the applicable Service Agreement, approved quotation, proposal, or service arrangement between the Client and North Crescent Facility Solutions Inc. (the "Service Provider"), to the extent that they have been properly incorporated into that agreement and are enforceable under applicable law.

For Seasonal Snow Removal Services and Ice Treatment, the applicable approved proposal or Service Agreement will identify the selected service plan, agreed service areas, seasonal service period, applicable pricing, and any specific inclusions or exclusions.

The Client is responsible for reviewing these Terms & Conditions and the applicable quotation, proposal, or Service Agreement before accepting the Services and for requesting clarification of any provision they do not understand.

If the Client does not agree to these Terms & Conditions, the Service Provider may decline to enter into the proposed service arrangement or discontinue the Services where legally permitted and in accordance with any existing contractual obligations.

Nothing in this section excludes or limits any mandatory rights or protections available to the Client under applicable law.